



प्रधान आयुक्त का कार्यालय, केंद्रीय माल एवं सेवाकर, मुंबई दक्षिण
Office of the Pr. Commissioner of Central GST, Mumbai South
आकाशवाणी प्रसारण भवन, गेट नंबर 2, एच टी पारेख मार् एलआईसी चर्चगेट मेट्रो के बगल में, मुंबई-400020
Akashwani Broadcasting House, Gate No. 2, H T Parekh Marg, Near LIC Churchgate Metro, Mumbai-400020

Name and Address of Appellant:	Mr. Neeraj Singh Mohnia A-503 Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Pin:400080
Name of the Respondent:	Assistant Commissioner (CPIO), Division- II, CGST & C. Ex. Mumbai South Commissionerate and Assistant Commissioner (CPIO), Division- V, CGST & C. Ex. Mumbai South Commissionerate
RTI & CPIO Reply date Appealed against:	CCEM1/R/E/26/00116 dated 08.05.2026, CPIO, Division- II reply dated 26.05.2026 and CPIO, Division- V reply dated 04.06.2026

ORDER-IN-APPEAL NO. 03/2026-27

This is an order passed in terms of Section 19(1) of RTI Act, 2005.

यह सूचना का अधिकार (RTI) अधिनियम, 2005 की धारा 19(1) के तहत पारित एक आदेश है।

An appeal against this order lies with the Central Information Commission, 2nd floor, B-Wing, August Kranti Bhawan, Bhikaji Cama Palace, New Delhi 110066 in terms of Section 19(3) of the Right to Information Act, 2005. Such appeal may be filed within 90 days from the date of communication of this order.

इस आदेश के विरुद्ध सूचना का अधिकार अधिनियम, 2005 की धारा 19(3) के तहत केंद्रीय सूचना आयोग, द्वितीय तल, बी-विंग, अगस्त क्रांति भवन, भीकाजी कामा प्लेस, नई दिल्ली - 110066 के समक्ष अपील की जा सकती है। ऐसी अपील इस आदेश की सूचना प्राप्त होने की तिथि से 90 दिनों के भीतर दायर की जा सकती है।

The appeal shall be signed by the person to whom this order is issued. It shall be accompanied by a certified copy of the order appealed against and all documents in support of appeal. The appeal shall be presented in person to the authorised officer of the Central Information Officer referred in Paragraph 2 above or sent by Registered post addressed to such authorized officer.

अपील पर उस व्यक्ति के हस्ताक्षर होने चाहिए जिसके नाम यह आदेश जारी किया गया है। इसके साथ उस आदेश की प्रमाणित प्रति (certified copy), जिसके विरुद्ध अपील की जा रही है, तथा अपील के समर्थन में सभी दस्तावेज़ संलग्न होने चाहिए। अपील को व्यक्तिगत रूप से ऊपर पैराग्राफ 2 में उल्लेखित केंद्रीय सूचना आयोग के अधिकृत अधिकारी के समक्ष प्रस्तुत किया जाना चाहिए या ऐसे अधिकृत अधिकारी को पंजीकृत डाक (Registered Post) द्वारा भेजा जाना चाहिए।

Subject: First Appeal dated 14.08.2026, filed by Mr. Neeraj Singh Mohnia (received in this office 17.08.2026) against the reply of CPIO, Division- II reply dated 26.05.2026 and CPIO, Division- V reply dated 04.06.2026.

विषय: श्री नीरज सिंह मोहनिया द्वारा दिनांक 14.08.2026 को दायर प्रथम अपील (जो इस कार्यालय में दिनांक 17.08.2026 को प्राप्त हुई) CPIO, प्रभाग-II के दिनांक 26.05.2026 के उत्तर तथा CPIO, प्रभाग-V के दिनांक 04.06.2026 के उत्तर के विरुद्ध।

Brief Facts of the Case:

The appellant Mr. Neeraj Singh Mohnia (hereinafter referred to as the Appellant for brevity) residing at A-503 Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Pin:400080 had filed the RTI application having registration no CCEM1/R/E/26/00116 dated 08.05.2026 (**RUD-I**) with the Central Public Information Officer, Chief Commissioner of CGST & Central Excise, Mumbai Zone. The applicant sought the information GST registration and return records i.r.o. Rashmi Metasteel private Limited having CIN U27310MH2011PTC213595 thorough subject cited RTI which is reproduced below:

- **GST REGISTRATION:** *WHETHER RASHMI METASTEEL PRIVATE LIMITED (CIN U27310MH2011PTC213595) WAS EVER REGISTERED UNDER CGST ACT 2017 AND MGST ACT 2017 - IF YES - GSTIN ALLOTTED, DATE OF REGISTRATION, REGISTERED ADDRESS, BUSINESS ACTIVITY DECLARED, AND HSN CODES DECLARED (SPECIFICALLY WHETHER METALS, ALUMINIUM, STEEL OR SCRAP CODES WERE DECLARED). IF NEVER REGISTERED - WRITTEN CONFIRMATION ON LETTERHEAD.*
- **GST RETURNS AND TURNOVER:** *IF REGISTERED - TOTAL OUTWARD SUPPLIES DECLARED IN GSTR-1 AND TOTAL TAX LIABILITY IN GSTR-3B FOR EACH MONTH. HSN-WISE SUMMARY OF OUTWARD SUPPLIES. TOTAL INPUT TAX CREDIT CLAIMED IN GSTR-3B AND NATURE OF INPUTS. SCRUTINY AND AUDIT: WHETHER ANY SCRUTINY NOTICE WAS ISSUED UNDER SECTION 61 CGST ACT 2017 OR AUDIT UNDER SECTION 65 CGST ACT 2017 - AND WHETHER ANY DEMAND WAS RAISED FOR NON-PAYMENT OR SHORT PAYMENT OF GST. CANCELLATION: WHETHER GST REGISTRATION WAS EVER CANCELLED - WHETHER SUO MOTU BY DEPARTMENT OR ON COMPANY APPLICATION - AND DATE OF CANCELLATION IF APPLICABLE.*

2. On receipt of the same, the CPIO, CGST & CEX, Mumbai Zone transferred the same to the CPIO, CGST Mumbai South Commissionerate u/s 6(3) of the RTI Act, 2005 vide letter file no GCCO/RTI/APP/1063/2026-ADMN-O/o Pr CC-CGST-ZONE-MUMBAI dated 08.05.2026 (**RUD-II**).
3. Upon careful review of the aforementioned RTI application, this office noted that the information may fall under the administrative jurisdiction of Division- I to X, CGST Mumbai South Commissionerate, the request was forwarded to their office u/s 6(3) of the RTI Act, 2005 vide letter F. No. GEXCOM/RTI/APP/2344/2026-ADMN-O/o Pr COMM-R-CGST-MUMBAI(S) dated 18.05.2026 (**RUD-III**) for necessary action.
4. The CPIO, Division- II vide letter file no. CGST/MSD2/RTI/2025/PT.IV/156/2025-26 dated 26.05.2026 and CPIO, Division- V vide letter file no. GEXCOM/TEC/Misc/2937/2025-CGST-Div5-COMMRTE-MUMBAI(S) dated 04.06.2026, (**RUD-IV**) submitted their reply to the applicant which is produced below:

“आपके द्वारा आर.टी.आई. के माध्यम से माँगी गई जानकारी इस मंडल में उपलब्ध नहीं है।”
“It is informed that the data/information sought by you is neither available nor any such specific, analyzed or explicit data has been maintained by this office.”
5. Being aggrieved, the applicant filed the first appeal dated 14.08.2026 (**RUD-V**) with The First Appellate Authority, CGST Mumbai South Commissionerate.

Grounds of First Appeal:

6. The Appellant has filed the first appeal dated 14.08.2026 with The First Appellate Authority, CGST Mumbai South Commissionerate on the following grounds:

- **GROUND 1– Non-speaking blanket denial:** *The response is a single-line blanket denial -that the data/information sought is neither available nor any such specific, without any analyzed, or explicit data has been maintained. This covers Items 6-A through 9-B (nine distinct items) without any item-wise reason whatsoever. Section 7(1) of the RTI Act, 2005 requires separate reasons for each sought. This is a non-speaking order, void in law. [CBSE v. Aditya Bandopadhyay (2011) 8 SCC 497]*
- **GROUND 2 – No exemption cited; Section 8(2) public interest override applies:** *No aggregate exemption under Section 8(1) of the RTI Act was cited by the Respondent. GST registration status and aggregate compliance data of a struck-off company (Rashmi Metasteel Private Limited, CIN U27310MH2011PTC213595) is not personal information under Section 8(1)(j), nor is it commercially sensitive information under Section 8(1)(d) - the company is defunct. In any event, the public interest override under section 8(2) squarely applies, active fraud proceedings before DRT-II, Mumbai (OA 122/2022, IA 884/2026) And before CBI EOW, Mumbai involve fraud exceeding Rs.51 crore.*
- **GROUND 3 – Section 10(1) severability ignored:** *Section 10(1) of the RTI Act, which requires severance of exempt from non-exempt intimation, was ignored entirely. At minimum, written confirmation of whether Rashmi Metasteel was ever registered under GST - positive and negative - cannot be withheld under any exemption and must be provided on department letterhead.*
- **GROUND 4--Ambiguity as to the correct CPIO:** *The first response is signed by Shri Pukhraj Singhvi, with the copy line reading 'Copy to': The Assistant Commissioner (CPIO), RTI-CPGRAM, CGST & C. Ex., Mumbai South- for information please. A Second materially identical was separately issued by Smt. Archana Salaye of a different Division. The Appellant respectfully seeks clarification as to which officer is, in fact, the designated CPIO for this application solely to ensure that the correct authority is being addressed, and to resolve the genuine confusion this dual response has created.*
- **GROUND 5–Unnotified Section 6(3) transfer; portal jurisdictional ambiguity:** *The RTI Online portal (rtionline.gov.in) records the following status for CCEMI/RE/26/001 16: 'Status: REQUEST PHYSICALLY TRANSFERRED TO OTHER PUBLIC AUTHORITY - Date of Action 11.05.2026 - Details of Public Authority: Mumbai South Commissionerate. The original RTI was filed to the Chief Commissioner of CGST & Central Excise, Mumbai Zone, and was physically transferred - not electronically transferred within the RTI Online system - to Mumbai South Commissionerate under section 6(3) of the RTI Act, a transferring authority must inform the applicant of such transfer, no such intimation was sent to the Appellant. The portal continues to record the public authority as the Chief Commissioner, Mumbai Zone, creating a continuing jurisdictional ambiguity as to which office and CPIO is responsible for the response.*

Personal Hearing:

7. The appellant was given online Personal Hearing on 24.08.2026 at 03:30 PM vide letter F. No. GEXCOM/RTI/FAAA/183/2026-VIG-O/o-Pr-COMMR-CGST-MUMBAI(S) dated 18.08.2026. Shri Neeraj Singh Mohnia attended the personal hearing in person on 24.08.2026 at 3:30 PM via online mode. During the hearing, he confirmed that the appeal was filed against the replies of the CPIOs, Division-II & Division-V. Furthermore, he expressed disagreement with their responses, wherein the requested information/documents were denied on the grounds of non-availability. Therefore, he requested the First Appellate Authority (FAA) to pass a reasoned order directing the concerned CPIOs to provide the information as sought in the RTI application, or to issue a speaking order in accordance with the provisions of the RTI Act, 2005.

Discussion and Findings:

8. I have carefully gone through the RTI application dated 08.05.2026, reply given by CPIO, Division- II vide letter file no. CGST/MSD2/RTI/2025/PT.IV/156/2025-26 dated 26.05.2026 and CPIO, Division- V vide letter file no. GEXCOM/TEC/Misc/2937/2025-CGST-Div5-COMMRTE-MUMBAI(S) dated 04.06.2026, the appeal filed by the applicant dated 14.08.2026 and further request made by the appellant during the Personal Hearing dated 24.08.2026.

9. During the hearing, it is found that the applicant did not have the PAN Card or GSTIN of the company, he has only CIN of the company, Company name i.e. Rashmi Metasteel Pvt. Ltd. and the name of its director i.e. Ravi Babulal Bohra.

10. Further, I find that the CPIO, Division- II vide letter file no. CGST/MSD2/RTI/2025/PT.IV/156/2025-26 dated 26.05.2026 and the CPIO, Division- V vide letter file no. GEXCOM/TEC/Misc/2937/2025-CGST-Div5-COMMRTE-MUMBAI(S) dated 04.06.2026, replied that the "neither available nor any such specific, analyzed or explicit data has been maintained by this office ". I find that, both the CPIO's have not issued proper speaking order.

11. Now the issue before me is whether the CPIO has correctly complied with the provisions of the RTI Act, 2005 while replying to the application of Appellant.

12. I find that, a careful examination of the facts reveals that the information (as stated above) requested by the Appellant may be available with the concerned authority. Hence, the same may be provided in this matter based on the merits and subject to the provisions of the RTI Act, 2005. Further, if the said information is held by other CPIO, the same may be transferred to them u/s 6(3) of the RTI Act, 2005.

13. Therefore, I am of the view that the appropriate decision may be taken by the competent authority (CPIO) based on merits and subject to the provisions of the RTI Act, 2005. Accordingly, I proceed to pass the following Order:

Order

14. The CPIO's, Division-II and Division-V are hereby directed to re-examine the matter and issue a speaking order to the applicant strictly on merits and in accordance with the provisions of the RTI Act, 2005, including transferring the RTI application under Section 6(3) if required. Accordingly, the present First Appeal stands disposed of.

15. This order is issued without prejudice to any ongoing or future proceedings under any applicable law. The decision is arrived at based on the merits of the appeal and the following Relied Upon Documents (RUDs):

- I. **RUD-I:** RTI Application dated 08.05.2026
- II. **RUD-II:** CCO Transfer Order dated 08.05.2026
- III. **RUD-III:** RTI Transfer to Divisional CPIO dated 18.05.2026
- IV. **RUD-IV:** Reply of CPIO, Division- II dated 26.05.2026 and CPIO, Division- V dated 04.06.2026
- V. **RUD-V:** First Appeal dated 14.08.2026

(Merugu Suresh)
Additional Commissioner
First Appellate Authority
CGST & Central Excise
Mumbai South Commissionerate

F. No. GEXCOM/RTI/FAAA/183/2026

Place: Mumbai

Date: The, September, 2026.

To,

Mr. Neeraj Singh Mohnia

A-503 Marathon Eminence, Dadasaheb Gaikwad Marg,

Mulund West, Pin:400080.

Copy to:

1. CPIO, Division- II, CGST & C. Ex., Mumbai South.
2. CPIO, Division- V, CGST & C. Ex., Mumbai South.